18.1 Underline the characteristic features of legal writing mentioned in A opposite (for example, using old words) in the following consumer contract terms (1–3). Then complete the revised versions in plain terms (a–c) with appropriate words (or forms of words) from the original terms (1–3). Pay attention to the grammatical context.

1 This Agreement and the benefits and advantages herein contained are personal to each Member and shall not be sold, assigned or transferred by the Member.

a ..... is not transferable.

2 Lessor shall not be liable for loss of or damage to any property left, stored, or transported by Hirer or any other person in or upon Vehicle either before or after the return thereof to Lessor. Hirer hereby agrees to hold Lessor harmless from, and indemnify Lessor against all claims based on or arising out of such loss or damage unless caused by the negligence of Lessor.

b We are only ..... for ..... or damage to ..... left in the ..... if the loss or damage ..... from our ..... .

3 Title to property in the goods shall remain vested in the Company (notwithstanding the delivery of the same to the Customer) until the price of the Goods comprised in the contract and all other money due from the Customer to the Company on any other account has been paid in full.

c We shall retain ownership of the ..... until you have finished ..... for them.

18.2 Match the sentences containing Latin terms (1–7) with the sentences which have similar meaning (a–g). Look at B opposite to help you.

1 There is a prima facie case to answer.
2 They have entered a caveat.
3 Their action was ultra vires.
4 The newspapers cannot report details of the case because it is sub judice.
5 An ex parte application was lodged at the court.
6 The court sat in camera.
7 An ad hoc committee was formed.

a They acted in a way which was beyond their legitimate powers.
b An application for an injunction was made to the court by one party and no notice was given to the other party.
c The case was heard in private, with no members of the public present.
d They have warned us they have an interest in the case, so they will need notice before we take any further steps.
e A committee was set up for the particular purpose of investigating the issue.
f The action should proceed because one side has shown there seems to be sufficient evidence.
g The case cannot be mentioned in the media if it is likely to prejudice court proceedings.

Over to you

What are the advantages and disadvantages of drafting legal text in 'plain' language?

For information on the plain English movement, go to: www.plainenglish.co.uk/law.htm

18 Legalese

A Legal language

Legal writing in English has developed over hundreds of years and is characterised by specific features, some of which can make it difficult for the non-lawyer to understand. Characteristics of legal writing include: using Latin terms (see text B below); using technical terms ('subsidiarity' – see Unit 8); using old-fashioned words not much in general use (see text C below); using pairs of words with a reciprocal relationship ('lessor'/'lessee' – see Unit 39); using legal jargon ('without prejudice to') including the use of pairs of words ('terms and conditions'), or triplets ('build, erect or construct'); having special meanings for words in ordinary use ('the judge determined the facts of the case', where 'determined' means 'decided'); using vague words ('provide a sufficient service'); using long sentences with little punctuation; inverting word order ('title absolute'); using capital letters to signal important or defined terms ('the terms of the Lease …') avoiding personal pronouns ('you', 'we', 'I'); the specific use of the modal verb **'shall'** to impose an obligation or duty on someone ('The tenant shall not sub-let the whole or part of the premises.'); the use of 'shall' in a directory sense ('Notice of an appeal shall be filed within 28 days.').

There is a movement to draft legal text in standard, modern, 'plain' English but any change will be slow.

Note: Some legal drafters argue that the use of 'shall' in a directory sense is to be avoided because of confusion. Note also the general English use of 'shall' to refer to future intentions ('I shall write to him'), although this use is increasingly uncommon.

B Latin terms

There are many Latin terms in written English legal text, although recent reforms in the English justice system have encouraged the use of English rather than Latin. Some Latin terms are used so frequently that they are in general English use (e.g., **ad hoc, bona fide, pro rata, etc.**). It is useful to be able to recognise their meaning and a dictionary or online glossary will help. Forms of pronunciation vary.

ad hoc – for this purpose
affidavit – witnessed, signed statement
bona fide – in good faith
caveat – warning
de facto – in fact
de jure – by right
et cetera (etc.) – and so on
exempli gratia (e.g.) – for example
ex parte (ex p.) – by a party without notice
id est (i.e.) – that is
in camera – hearing a case in private
in curia – in open court
in situ – in its original situation
inter alia – among other things
ipso facto – by the fact
per pro – on behalf of another
per se – by itself
prima facie – at first sight
pro rata – in proportion
quasi – as if it were
sub judice – in the course of trial
ultra vires – beyond the power
videlicet (viz) – namely

C Older words and modern equivalents

A number of linking terms are used in older written legal texts (case reports, legislation, court documentation, contracts, etc.) to refer to other parts of the same text, to different legal documents, or to related contexts.

the aforementioned / the foregoing – set out above / written above
the undermentioned – set out below / written below
hereafter – after this
hereby – in this way / by this
herein – in this (document)
hereof – of this
hereto – to this
herewith – with this
notwithstanding – despite
thereafter – after that
thereby – in that way / by that
therein – in that (document)
thereof – of that
thereto – to that
therewith – with that

UNIT 15

A case law report

This unit focuses on case law. In common law systems, decisions made by judges when hearing a case establish how the law stands on certain points. Once a precedent is set (i.e. the legal principle has been established), it remains valid law unless changed by a later decision or by legislation.

BEFORE YOU READ

Discuss these questions.

1 Judges are able to make entirely new decisions in court if, for example, they consider that today's circumstances are very different from those applying when the legal precedent was originally established (which might have been many years earlier). What are the advantages of this approach? And are there disadvantages?

2 Think carefully about the circumstances of the case reported here before you read the report: Company A agreed to fit special breakdown equipment to a truck for Company B, and B would then sell the vehicle on to someone else. A fault was discovered in the special equipment that A fitted, but only six months after delivery, when B tried to sell the vehicle on. Do you think B was obliged to accept the truck? What factors do you think the court would have considered?

READING

A Understanding law reports

Read the case report on the opposite page and choose the best option to complete each statement.

1 The background is ...
   a) presented in a colourful, descriptive way.
   b) stated in a plain, factual manner.

2 Case reports contain ...
   a) a lot of specific legal language.
   b) mostly language that a non-lawyer could easily understand.

3 The word *Held* (line 21) introduces ...
   a) a summary of the arguments presented by the claimant and the defendant.
   b) the court's decision, together with an explanation of how the law applies to the situation in question.

B Understanding details

Read the report again and answer these questions.

1 This case concerns a dispute about a contract, but exactly what kind of contract?

2 An HGV is a heavy goods vehicle – a truck, a lorry of some kind. How are HGVs relevant to the agreement between the two companies?

Truk (UK) Ltd v Tokmakidis GmbH[1]

[2000] 1 Lloyd's Rep 543, [2000] 2 All ER (Comm) 594[2]

The claimants, an English company, contracted to supply and fit towing and lifting equipment to a chassis supplied by the defendants, a German company. This was a sale of goods. The essence of the contract was the delivery and sale of the lifting and towing equipment, which would allow broken-down HGV vehicles to be recovered. The claimants delivered the vehicle on 14 June 1996. However, the contract was breached in that the vehicle did not comply with certain guidelines specified in the contract. The defendants had bought the goods for resale. The contract envisaged that the resale of the vehicle might take more than six months, in that it provided that the price should be paid six months after delivery or on resale, whichever was sooner. The defendants had not intimated that they were rejecting until they discovered, in December 1996, that the vehicle did not comply with the contract specifications. (A potential buyer had pointed this out.) The parties then entered into negotiations which lasted until July 1997, when the defendants rejected the goods and refused to accept redelivery of a repaired vehicle.

Held. A reasonable time in which to intimate rejection had not passed. When goods are sold for resale, defects in the goods are often only discovered when the sub-buyer examines the goods. Therefore, a reasonable time in which to intimate rejection of the goods would usually be the time which it would be expected would be needed to resell the goods plus an additional period in which the sub-purchaser might inspect them and try them out. (If the vehicle had not been for resale, a month or two might have been a reasonable time on these facts, although discussions about remedying defects might have extended this period.) In July 1997, the defendants were still entitled to reject because they had done nothing to affirm the contract. Nor were they deemed to have accepted the goods by failing to reject them within a reasonable time. They had reserved their position while they were discovering what was wrong and negotiating, and they were allowed a reasonable time for that.

Legal notes

1 When talking about a case (here, *Truk (UK) Ltd v Tokmakidis GmbH*), lawyers often say *and* instead of *v* or *versus*. The first name is the claimant, the second is the defendant.

2 This report comes from a textbook on business law, but the original source is in Volume 1 of Lloyd's Reports, year 2000, at page 543, or Volume 2 of All England Reports at page 594. Official reports name the judges, the barristers representing the claimant and defendant, the instructing solicitors and the person who wrote the report.

3 When was it agreed that payment should be made?

4 Who discovered that there was a problem with the vehicle?

5 How many months after delivery did the German company reject the truck with the faulty towing equipment?

6 In the court's decision, what is regarded as a 'reasonable time' for rejecting goods sold for resale?

7 What would that 'reasonable time' be for goods not sold for resale, if the circumstances were similar to this case?

8 Was the court's decision in favour of the claimants or the defendants?

VOCABULARY

A Legal terminology

1 **Find words or phrases in the report which fit these meanings.**

1 the two parties opposing one another in a civil claim
c.....; d.....

2 agreed to do something by means of a contract
c.....

3 the central purpose of a contract (in contract law)
the e..... of the contract

4 broken (a contract)
b.....

5 obey (e.g. regulations, laws, etc.)
c..... .....

6 not accepting
r.....

7 the people or companies who enter into a contract
the p.....

8 faults in a product
d.....

2 **Letters from words and phrases used in the law report have been jumbled. Form the correct words using the definitions.**

1	an area of contract law relating to items offered for sale	LEAS FO OSDOG
2	the process of transferring a sold item to a buyer	LYVERIED
3	instructions on how things should be done	DENSELUIGI
4	Details (often technical) in a contract of what is to be supplied	STIPIFANISOCCE
5	Payment six months after receipt, or on sale, ... is sooner.	HIVECHEWR
6	the original buyer sells on to this person	BUS-SHARPCURE

B Synonyms

Match the legal expressions (1–7) with their 'everyday English' equivalents (a–g).

1 The contract envisaged that ...
2 They intimated rejection ...
3 The parties entered into negotiations ...
4 The defects have been remedied ...
5 The purchaser was deemed to have accepted the goods.
6 They were entitled to reject...
7 They had reserved their position

a) They have put all the faults right ...
b) They had not decided yet
c) They said that they wouldn't accept ...
d) They had the right to reject ...
e) As far as the law is concerned, they had accepted the goods
f) In the contract, it was expected that ...
g) The two companies started to negotiate ...

C Latin words and phrases

Latin expressions are used widely in the legal profession, particularly in court cases. Here are some that are relatively common. You should note that pronunciation differs from country to country – there is no 'correct' version.

ab initio	from the beginning	ex gratia	as a favour, not a right
ad hoc	for a specific situation	inter alia	among other things
affidavit	a sworn statement	per se	on its own
bona fide	in good faith	subpoena	an order to appear in court
caveat emptor	buyer, take care	ultra vires	beyond a limit of authority

Use the words and phrases in the language box to complete these sentences.

1 The contract was void ..... It was invalid right from the start.

2 To tell a lie is not illegal ..... But when someone is misled into buying something from you, that can be a different matter.

3 The court issued a ....., so the witness had no choice but to appear in court.

4 The sale description was fine. Completely ..... The buyer should've checked things more carefully before he bought. It's a basic rule of buying privately – .....!

5 The director was acting ..... when he signed that cheque for €500,000, so the company may not be liable to pay it.

6 She was a member of an ..... committee, set up solely to consider current staffing problems.

7 The evidence from one witness was not allowed, as the lawyers had failed to provide an .....

8 To maintain good customer relations, the manufacturers made an ..... payment of $150, but they did not admit liability.

9 The accused claimed, ..., that he was a famous sports personality. He deceived people with several different false claims.

OVER TO YOU

1 You are advising a friend who has bought an expensive communication device from a local shop. The camera doesn't work properly, the battery runs down very quickly, the downloads are very slow, and it looks like the box had already been opened before the salesman took it from the shelf. Really, the product doesn't do what the salesman told your friend it would do.

Write a letter of complaint to the shop manager. This need not be a lawyer's letter about misselling and broken contracts, but a business-like letter, setting out the facts clearly, and stating what action you want the shop to take.

2 Work in pairs. You have read the case of *Truk (UK) Ltd v Tokmakidis GmbH*. A colleague of yours wants to know all about it – what happened, and what the court decided. Your colleague is not a legal specialist, so may not understand technical legal words. Make notes so you can tell the whole story in your own words, without having to refer back to the report. Ask your colleague to summarise what you have said.

3 Find a different case report and give a short spoken summary of it. Explain in your own words what the case is about, what the area of law is, who the parties are, what the background is and what the court decided.